

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Carter	Team: Squad #03	CCRB Case #: 201809344	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/08/2018 12:43 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/23/2020	Precinct: 113		
Date/Time CV Reported Thu, 11/08/2018 1:38 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/08/2018 1:38 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Ryder	01129	963732	113 PCT
2. POM Damien Lombardo	08867	957778	113 PCT
3. LT David Goldstein	00000	932721	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Bracco	19949	958325	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Damien Lombardo	Abuse: Police Officer Damien Lombardo stopped § 87(2)(b)	A . Unsubstantiated
B . LT David Goldstein	Abuse: Lieutenant David Goldstein stopped § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 8, 2018, § 87(2)(b) filed this complaint with the CCRB over the phone.

On November 8, 2018, at approximately 12:43 p.m., § 87(2)(b) called 311 to report that his landlord had turned off the utilities in his apartment at § 87(2)(b) in Queens. Police Officer Damien Lombardo and Police Officer Joseph Bracco from the 113th Precinct arrived at § 87(2)(b)'s apartment. Police Officer Christopher Ryder and Lieutenant David Goldstein, also from the 113th Precinct, arrived at the location a short time later. PO Lombardo requested § 87(2)(b)'s ID (**Allegation A: Abuse of Authority, unsubstantiated**). Lieutenant Goldstein requested the ID from PO Lombardo, handed it to PO Ryder, and said, "run him" (**Allegation B: Abuse of Authority, unsubstantiated**). No summons was issued and no arrest was made during this incident. § 87(4-b), § 87(2)(g)

This case does not contain video footage.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Damien Lombardo stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant David Goldstein stopped § 87(2)(b)

§ 87(2)(b) stated that on November 8, 2018, he called 311 and told the operator that he did not have heat, hot water, or gas because his landlord had shut it off (**01 Board Review**). § 87(2)(b)'s call was redirected to 911, and he repeated this information.

Shortly after ending his call with the 911 operator, there was a knock on § 87(2)(b)'s door. He opened the door to see PO Lombardo and PO Bracco standing in front of him. Lieutenant Goldstein was standing behind them.

§ 87(2)(b) presented a letter from Con Edison to PO Lombardo and PO Bracco that showed that his utilities were shut off. Lieutenant Goldstein paid attention to this and made notes in a notepad. The officers asked § 87(2)(b) whether he had seen his landlord or knew where he was. § 87(2)(b) told them that the landlord was in Florida. PO Lombardo and PO Bracco relayed this information back to Lieutenant Goldstein.

PO Lombardo asked for § 87(2)(b)'s ID. § 87(2)(b) provided it to him. Lieutenant Goldstein took the ID from PO Lombardo, and said, "what is this, 'enhanced learner's permit?'" Lieutenant Goldstein gave the ID to PO Ryder and said, "Run him." PO Ryder walked down the stairs in front of § 87(2)(b)'s apartment and checked for warrants. PO Ryder returned with the ID less than a minute later. Lieutenant Goldstein asked him, "anything?" and PO Ryder responded, "nothing."

Lieutenant Goldstein and PO Ryder left the location. PO Lombardo and PO Bracco stayed and told him that he needed to address the matter in civil court.

§ 87(2)(b) identified each officer and specified the roles they played during the incident during a photo viewing at the CCRB.

PO Ryder recalled nothing about the incident in question (**05 Board Review**). He stated that all that is needed for an officer to search for outstanding warrants for an individual is this individual's name and date of birth – not necessarily the ID that this information is listed on.

At 12:56 p.m. on the date of the incident, PO Ryder performed a warrant audit for § 87(2)(b) using his first and last name and date of birth (**06 Board Review**).

PO Lombardo stated that on November 8, 2018, at approximately 12:48 p.m., he received a radio run for harassment at § 87(2)(b)'s apartment (**02 Board Review**). At the location, § 87(2)(b) met PO Lombardo and PO Bracco at his front door and complained to them that his landlord had turned his utilities off. The officers could see inside of § 87(2)(b)'s apartment from where they stood. § 87(2)(b) showed an assortment of documents to the officers. Some of the utilities documentation that § 87(2)(b) showed to the officers was not in his name. PO Lombardo recommended to § 87(2)(b) that he ask the utility company to turn the utilities on in his own name instead. § 87(2)(b) presented additional documentation that “didn’t mesh.” The documents had different names and dates on them that PO Lombardo could not make sense of. PO Lombardo could not recall where these documents were issued or sent from.

PO Lombardo could not remember if § 87(2)(b) knew his landlord's name or not, but he mentioned that he lived in Florida. § 87(2)(b) could not tell the officers who he paid rent to. The interior of his apartment was in disarray – there were fifty-gallon drums in the living room, clothes and dirt on the floor, and clutter everywhere. PO Lombardo did not make any judgements as to whether § 87(2)(b) was living at the location legally.

§ 87(2)(g)
First, PO Bracco stated that the interior of § 87(2)(b)'s apartment seemed as though he had been living at the location for a long time, and that there was nothing out of the ordinary about what he could see inside of § 87(2)(b)'s apartment. There was no question as to whether § 87(2)(b) was living at his apartment legally. Second, PO Bracco stated that § 87(2)(b) only showed National Grid documentation to the officers, although this documentation did not have § 87(2)(b)'s name on it.

Both PO Lombardo and PO Bracco stated that they encouraged § 87(2)(b) to call National Grid and find out a way to have the utilities company turn on their services in his name, instead of the name(s) that were listed on the documents he provided. PO Lombardo and PO Bracco denied requesting § 87(2)(b)'s photo ID themselves, and neither had any recollection of another officer doing so. Both officers stated that § 87(2)(b) was free to leave at any time during the incident.

Lieutenant Goldstein stated that illegal evictions and squatting are particularly important conditions in the 113th Precinct, and that it is part of standard procedure for a supervising officer to respond to reports of illegal evictions (**04 Board Review**). Upon arriving at § 87(2)(b)'s

apartment, PO Lombardo and PO Bracco were talking to § 87(2)(b) at his front door. The officers told Lieutenant Goldstein that § 87(2)(b) was squatting. Lieutenant Goldstein found the conditions inside of § 87(2)(b)'s residence "horrible." The apartment was "not even a living area," and even a lay person could tell that the location was not a suitable residence. The apartment was "really messy," as though objects had been "piling up for years from all different kind[s] of people coming and going."

There were fifty-gallon drums inside of the building, and § 87(2)(b) said he did not know why they were there. Discarded furniture was stacked in the corner. The assortment of objects inside of the apartment "obviously didn't belong to the same person." Lieutenant Goldstein suspected that the assorted objects came from different families who had moved in and out of the location over many years. § 87(2)(b) complained to the officers that his landlord had shut off his electricity, but could not provide documentary proof that he lived at the location. He did not know who his landlord was. Lieutenant Goldstein stated that § 87(2)(b) was told that if he wanted electricity, he could turn it on by calling the utility company, and because there was no complaint of him squatting at the location, they were not going to kick him out of the residence.

When asked whether he had any suspicion that a crime was being committed, Lieutenant Goldstein stated that situations with squatters are "tenuous," because, when it has been established that nobody owns a residence, there can be no crime. On the other hand, squatters are often trespassing. Lieutenant Goldstein stressed the importance of having background information about individuals who are involved in abnormal landlord-tenant disputes or are squatting. Lieutenant Goldstein did not investigate whether § 87(2)(b) was squatting inside of his apartment. He did not know whether other officers searched for the building § 87(2)(b) was living in using any databases. Lieutenant Goldstein denied that an officer requested § 87(2)(b)'s ID, and did not recall PO Ryder checking to see if § 87(2)(b) had outstanding warrants for his arrest. § 87(2)(b) was free to leave at any point during the incident.

§ 87(2)(g)

Therefore, it is recommended that **allegations A and B** be **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and no additional allegations.
 - § 87(2)(b)
- PO Lombardo has been a member of service for four years and has been a subject in one other CCRB complaint.
 - 201809123 is an active investigation.
- Lieutenant Goldstein has been a member of service for 15 years and has been a subject in 15 CCRB complaints and 30 other allegations, none of which were substantiated.

§ 87(2)(g)

- PO Ryder has been a member of service for two years and has been a subject in one other CCRB complaint and two other allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- A FOIL request for a notice of claim regarding this incident was submitted on April 22, 2019, and will be added to the case file upon receipt.
- On January 20, 2019, this case was sent to mediation and on March 5, 2019 the case was returned to investigation after PO Lombardo rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date